

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DOH

Date: 5/18/2026

Bill Number: SB9

Short Title (as it appears on BASIS): Surrender of Infants; Inf. Safety Device

What action do you recommend the Governor take?

☒ SIGN ☐ VETO ☐ LWOS

Action Justification – Why do you recommend the above action?

SB9 bill will prevent individuals who have lawfully surrendered an infant from being unnecessarily excluded from professions that require licensure or certification.

What does this Bill do?

Currently, an individual who is/was subject to a child-in-need-of-aid petition under AS 47.10 for a child in their custody is ineligible to receive a license or certification from the Department of Health. SB9 establishes an exemption for instances when the only basis for the denial was the surrender of an infant in accordance with the provisions of AS 47.10.013(c). This will prevent individuals who have lawfully surrendered an infant from being unnecessarily excluded from professions that require licensure or certification.

SB9 also identifies installation, operation, and inspection requirements for entities (e.g., hospital, clinic, fire or police department) that elect to have an infant safety device on their premises and allows the department to provide operation and inspection training. This will provide a safe and anonymous surrender option for individuals who are unable or unwilling to care for their infant.

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Detailed Sectional Analysis

Sections 1 and 2

Currently, an individual who is the biological or adoptive parent, guardian, custodian, or Indian custodian of a child who is or was subject to a child-in-need-of-aid petition under AS 47.10 is ineligible to be licensed or certified by the Department of Health and the Department of Family and Community Services or is identified as such in a civil history check. Sections 1 and 2 amend AS 47.05.325 and AS 47.05.330 to exempt that individual from these requirements if the only basis in the petition was that the child was surrendered under AS 47.10.01(c).

Section 3

Amends AS 47.10.013(c) to identify that an infant safety device, provided that it meets certain criteria, may be used by an individual to surrender an infant and remain immune from prosecution. AS 47.10.013(c)(1)(B)(i) establishes requirements for a device, including locations to which it must be permanently affixed (hospital, emergency department, free-standing birth center, tribal health clinic, physician office, rural health clinic, municipal police department, state trooper post, or fire department), and that the device must meet the requirements of AS 47.10.013(h).

Section 4

AS 47.10.013(d) is amended to establish that a person to whom an infant is surrendered, specified in AS 47.10.013(c)(1)(A)(ii) or (iii) shall immediately notify the nearest office of the Department of Family and Community Services upon receiving a surrendered infant.

Section 5

AS 47.10.013(e) is amended that a facility that receives an infant under AS 47.10.013(c) must be authorized to be exempt from liability under AS 47.10.013(d).

Section 6

AS 47.10.013 is amended by adding the following new sections:

- (g) requires a facility to immediately notify the department when an infant is surrendered;
- (h) requires an infant safety device be located in a conspicuous place that is visible to facility employees; climate controlled; clearly marked with specified signage including 211 information and other resource contacts; equipped with an automated 911 transmitter, video surveillance to monitor the infant, and an automated lock; installed, operated, and maintained in accordance with the manufacturer's guidelines and department instructions; and inspected upon installation and annually by the facility where it is located;
- (i) establishes that the department may provide training to emergency medical service providers, 911 operations, hospital staff, firefighters, law enforcement officers, and designated facility staff in how to implement and comply with device and infant surrender requirements;
- (j) that requires the department to notify the appropriate tribe if an abandoned infant is determined to be Alaska Native; and
- (k) that defines "authorized facility" as a facility, described in AS 47.10.013(c)(1)(B)(i),

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that has an infant safety device.

Section 7

Establishes July 1, 2026, effective date.

Companion or Similar Bills

HB64 (Sen. Tomaszewski, et al); no rider bills or provisions

Support/Opposition of the Bill

Anchorage Fire Department
Douglas Schrage, Fire Chief 907.267.4900

Fairbanks Memorial Hospital
Shelley Ebenel, CEO
907-699-2067 or 907-474-4746

Bill Signing ceremony suggestions (if applicable)

- Fairbanks Memorial Hospital – in the atrium – since they are the lead entity that inspired the bill
- Tanana Valley Fair (usually in the last week of July / first week of August)

Commissioner's Signature: Heidi Hedberg Date: 5/18/2026

I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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